



U.S. Department
of Transportation

Research and
Special Programs
Administration

OCT 14 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9101
(EIGHTH REVISION)

EXPIRATION DATE: September 30, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Lockheed Martin Missiles & Space
Newtown, Pennsylvania
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain Rocket motors, Division 1.3C, which exceed the gross weight limitations authorized for shipment by cargo aircraft. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Table column (9B), § 175.30.
5. BASIS: This exemption is based on the application of Lockheed Martin Missiles & Space dated September 28, 1999, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Rocket motors (identified as follows: Thiokol E34700 (TE-M-700-12) EX-8308027; E31469 (TE-M-700-8) EX-8308025; (TE-M-700-17) EX-8709105A; (TE-M-700-18), 1118 pounds, EX-8709105B; (TE-M-700-18) 1101 pounds, EX-8709105C; or the Star 37XFP model no. E38120 (TE-M-714-17) EX-8607057.	1.3C	UN0186	II

7. PACKAGING AND SAFETY CONTROL MEASURES: Packaging is as prescribed in § 173.62 or as described in Drawing Number 14835 in the Bureau of Explosives Approval BA 3126. The Star 37XFP rocket motor must be shipped in the metal shipping container described in Morton Thiokol's drawings E37581, E42093 and E34195 on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA).
8. SPECIAL PROVISIONS:
- a. Shipments are to originate at Miami, Florida or Philadelphia, Pennsylvania destined for Kourou, French Guiana or returned from Kourou, French Guiana destined for Miami, Florida or Philadelphia, Pennsylvania. Air carriers authorized for transportation are Air France; or other cargo aircraft carriers that are specifically identified to and approved in writing by the Associate Administrator for Hazardous Materials Safety (AAHMS).
 - b. The requirements of § 175.320(b) apply to operations under this exemption.
 - c. A current copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.
 - d. This exemption does not grant authority to use foreign controlled airspace or airports outside the United States.
 - e. This exemption serves as a Competent Authority Approval (CA-9704022) issued by the Associate Administrator for Hazardous Materials Safety of the United States Department of Transportation, in accordance with Part 1; Chapter 1, paragraph 1.1 of the International Civil Aviation Organization's Technical Instructions (ICAO TI).
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo aircraft only.
10. MODAL REQUIREMENTS:
- A current copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption. The shipper must furnish a current copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

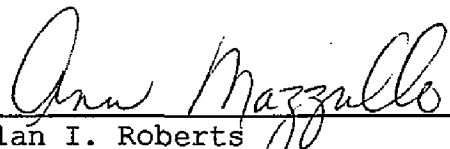
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for 

Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety



(DATE)

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS U.S. Department of Transportation, 400 7th Street, SW, Washington, DC 20590-001, Attention: Records Center, 202-366-5046.

Dist: FHWA, FAA
PO: sln99